How to Talk With Dad About His Wishes and His Legal Papers

One unhurried conversation, with his answers written down in his own words.

You've wanted to ask Dad who he'd want handling things if he ever needed a hand. It never seems like the moment at Sunday dinner.

This guide is for one conversation with one job: hear what Dad wants and which papers he has signed, and write it down the way he says it. It isn't for deciding anything, and you don't need every paper in hand to begin.

Who should be there

Dad, first, and it's his call who else. Some parents would rather begin with one son or daughter at the kitchen table than with the whole family in the living room. Ask him. Anyone else can hear about it afterward, if he's willing.

Someone takes notes. If it's only the two of you, that's you, and you read them back to him at the end.

How to open

Start with a question, not a conclusion. Nothing is wrong, and you can say so.

- “Dad, nothing's the matter. I realized I don't know where your will is, or who you'd want helping if you ever wanted a hand, and I'd rather hear it from you.”
- “I'm not asking what's in the will. I'd like to know which papers there are and where you keep them.”
- Say what the conversation is for: knowing his wishes and where his papers are. Say what it isn't for: changing anything he has signed.

Questions to ask

Ask Dad

1. Which legal papers have you signed over the years, as far as you remember?

2. Where do you keep them, and does anyone else hold a copy?

3. If you ever wanted a hand with money matters, who would you want helping? And with decisions about your health?

4. Has anything changed in the family since you signed them that's been on your mind?

5. Who would you like to know where these papers are?

6. Would you be comfortable going through them together some afternoon, and having an elder law attorney look them over at some point?

Ask each other, afterward

1. What did each of us believe, before today, about who is named in what, and where did we get it?

2. What don't any of us know yet?

How to write down what was said

Keep three things apart: what Dad says he wants, what he remembers signing, and what a signed page says once you've seen it. Where they differ, write each one down and don't settle it. The difference is something to bring to an elder law attorney as it stands.

WHAT WAS SAID	WHO SAID IT	A WISH, A MEMORY, OR READ FROM THE PAGE	STILL TO CHECK
“Karen's good with paperwork. I'd want her looking after the bills if it ever came to that.”	Dad	A wish	Who the power of attorney names. Haven't seen it.
“The will's in the desk, or the office that drew it up has it.”	Dad	A memory	Look in the desk with him on Saturday.

What not to decide yet

These belong to Dad and to an elder law attorney who knows your state. Write each one down as a question and leave it open.

- Whether any of his documents is out of date or needs changing.
- Whether a trust or another legal strategy could help.
- Anything about transferring property or changing how something is owned.

- Who is right, where two of you remember it differently.

What you can decide today

- Who will write up the notes and read them back to Dad, so he can correct them.
- Which papers you'll look for together, and on which afternoon.
- Who will take each open question to your Medicaid planner or to an elder law attorney.
- When you'll talk again.

What this guide doesn't do

It doesn't resolve a disagreement, decide anything for Dad, or tell you what an attorney will say. It gets his wishes onto one page in his own words, with the open questions left open. Nothing here is legal, financial or tax advice.

Ready for the next step?

You've heard what Dad wants and who he'd want deciding, and you've written it down in his words. The planning interview asks about your family's wider situation, so his wishes sit beside everything else you know, and gives you a free planning report you can bring to any conversation about paying for care.

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